



ANTI-TERRORISM (SECOND AMENDMENT) ORDINANCE, 2002

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ANTI-TERRORISM (SECOND AMENDMENT) ORDINANCE, 2002

ORDINANCE NO. CXXXIV OF 2002

An further Ordinance further to amend the Anti-Terrorism Act, 1997

WHEREAS it is expedient further to amend the Anti-terrorism Act, 1997 (Act XXVII of 1997), for the purposes hereinafter appearing;

AND WHEREAS the, President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the Fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999, read with the Provisional Constitution (Amendment) Order No. 9 of 1999, and in exercise of all other powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:--

1. Short title and commencement.-(1) This Ordinance may be called the Anti-Terrorism (Second Amendment) Ordinance, 2002.

(2) It shall come into, force at once.

2. Amendment of section 13, Act XXVII of 1997. In the Antiterrorism Act, 1997 (XXVII of 1997), hereinafter referred to as the said Act. In section 13, in sub-section (2), -

- (i) for the commas and words, "keeping in view the seniority and status of the Members of various Courts in that area, designate a Member of any such Court to be an administrative Member" the words "designate a Judge of any such Court to be an administrative Judge" shall be substituted and shall be deemed to have always been so substituted; and
- (ii) for the words "administrative Member and such administrative Member may either assign the case for trial to the Court of which he is a Member" the words "said Court and such Judge may either try the case himself" shall be substituted and shall be deemed to have always been so substituted.

3. Substitute of section 14, Act XXVII of 1997. In the said Act, for section 14 following shall be substituted and shall be deemed to have always been so substituted. namely:-

"14. Composition and appointment of presiding officers of Anti Terrorism Courts.-(1) An Anti-Terrorism Court shall consist of a Judge being a person who-

(i) is a Judge of a High Court, or is or has been a Sessions Judge or an Additional Sessions Judge, or

(ii) is a Judicial Magistrate First Class vested with powers under section 30 of the Code; or

(iii) has for a period of not less than ten years been an Advocate of a High Court.

(2) The Federal Government or the Provincial Government, if directed by the Federal Government to establish a Court under this Act, shall, after-consultation with the Chief Justice of the High Court, appoint a Judge of each Court.

(3) A Judge shall hold office for a period of two and a-half years but may be appointed for such further term or part of term as the Government appointing the Judge may determine.

(4) A Judge may be removed from his office prior to the completion of the period, for which he has been appointed after consultation with the Chief Justice of the High Court:

(5) In case a Judge is on leave, or for any other reason temporarily unable to perform his duties, the Government making appointment of such Judge may, after consultation with the Chief Justice of the High Court, authorize the Sessions Judge, having jurisdiction at the principal seat of the Anti-Terrorism Court, to conduct proceedings of urgent nature. so long as such Judge is unable to perform his duties.

(6) The Anti-Terrorism Courts existing immediately before the commencement of the Anti-Terrorism (Second Amendment) Ordinance, 2002, and the Judges appointed to such Courts, shall, subject to the provisions of this Act, as amended, continue to function and try offences under this Act.”.

4. Amendment of section 16, Act XXVII of 1997. In the said Act, in section 16, for the word "Member" the word "Judge" shall be substituted.

5. Amendment of section 21, Act XXVII of 1997. In the said Act, in section 21, the word and comma "Member," wherever occurring after the word "Judge" and the word and comma "Members," wherever occurring after the word "Judges" shall be omitted.
